

EDM 101 – Ethics and Patients' Rights in Dental Medicine

Lecture 12

Substituted consent for dental care decisions

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This classes learning outcomes

By the end of this lecture you are able to

- Define substituted consent and when it is used.
- Identify patients with compromised decision-making capacity.
- Understand the role of parents and legal guardians.
- Apply ethical reasoning to clinical cases.



Substituted Consent

Consent given by another person on the patient's behalf.

Used when the patient:

- A. Can't understand
- B. Can't decide
- C. Can't communicate



Capacity to Decide

Capacity is the ability to:

1. Understand information
2. Evaluate options
3. Make a decision
4. Communicate choice



Who doesn't have the Capacity to decide?

- A. Children
- B. Unconscious patients
- C. Patients with mental disability
- D. Severe illness or confusion



Substituted Decision Makers

- Parents
- Legal guardians
- Court-appointed decision makers



Types of Substituted Consent

1. Implied Consent

- A. Shown by the patient's actions
- B. Such as: sitting in a chair, opening the mouth
- C. Only for examination

2. Verbal Consent

- A. Spoken agreement
- B. Used for simple, low-risk procedures
- C. Such as: scaling, simple filling

3. Written Consent

- A. Signed document
- B. Required for surgical/high-risk procedures
- C. Such as: extraction, implants



Types of Substituted Consent

4. Explicit Consent

- A. Clear, informed agreement (verbal or written)
- B. Required for treatment plans

5. Presumed Consent

- A. Used in emergencies
- B. The patient is unable to respond
- C. Such as: unconscious patient



Role of Parents & Guardians in Decision-making

- Act in the child's best interest
- Make informed decisions
- Consider long-term outcomes



The Responsibility of The Dentist

- Protect patient welfare
- Do not blindly follow parents' decisions
- Act as patient advocate



Substituted Judgment

What would the patient choose in such situations?

Used when:

Patient previously expressed wishes

Respecting the patients' values even if they can't speak



Best Interest Standard

What is the best medical treatment for the patient?

Used when:

Patient preferences are unknown

When having doubts, you should choose what benefits the patient



The capacity of a Patient is not fully there or absent

It can be:

- A. Full capacity
- B. Partial capacity
- C. No capacity

Most patients are in the middle, where ethics becomes difficult.



Partial Capacity

It can be:

- Elderly patient with mild dementia
- Anxious or confused patient
- A child who understands partially

These patients should still be involved in decisions.



Managing Partial Capacity Patients

- A. Simplifying information for them
- B. Check their understanding
- C. Involve the patient and guardians
- D. Respect the patient as much as possible

Patients should be involved according to their capacity.



Ethical Conflicts

Possible conflict:

- A. Patient refuses treatment
- B. Guardian agrees
- C. Dentist sees benefit



Decision-Making in Ethical Conflicts

We must consider:

1. Patient's wishes
2. Medical benefit
3. Risk of harm
4. Urgency

Ethics should be balanced, decisions shouldn't made blindly



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When to Override Refusal

It can be done when:

- A. Serious harm is expected
- B. Patient lacks capacity
- C. Treatment is urgent



Assignment:

An elderly patient with confusion refuses the treatment, but family members agree that treatment should be done.

1. Does the patient have full decision-making capacity?
2. Who should make the final decision?
3. Which ethical principles are involved?
4. What is the most appropriate action for the dentist?



Summary:

- Capacity determines consent
- Substituted consent is common
- Parents/guardians play key role
- Patient must still be involved
- Dentist protects patient interest



Thank You!



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